

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-04

CROCUS INVESTMENTS, LLC AND CROCUS, FZE,

— vs. —

**MARINE TRANSPORT LOGISTICS, INC. AND ALEKSANDR SOLOVYEV
a/k/a ROYAL FINANCE GROUP INC.**

COMPLAINANTS' MOTION FOR A REVISED REMAND SCHEDULING ORDER

Pursuant to Rules 69, 71, and 102, of the Federal Maritime Commission's (the "Commission") Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this motion to the Presiding Officer, Chief Administrative Law Judge Erin M. Wirth, within which complainants request that the Presiding Officer revise the Remand Scheduling Order of July 22, 2019 (Document 75) to allow for additional time for the filing of Remand Briefs, as set forth in detail below.

ARGUMENT

At the time of the issuance of both the July 16, 2019 Memorandum Opinion and Order on Complainants' Exceptions (Document 73), as well as the Presiding Officer's Remand Scheduling Order of July 22, 2019, the undersigned had already arranged, purchased and paid for family related travel in late August. Additionally, other matters in which the undersigned is sole counsel of record were scheduled for September in order to accommodate the August related travel, with the sole exception being a forthcoming filing in an unrelated FMC matter, which shall be filed prior to the start of travel.

The undersigned also respectfully requests that the Presiding Officer note that the undersigned's September calendar includes representation of a party in a trial in New York State Family Court in late September.

I have conferred with counsel for respondents by email, who have consented to the instant request for a revised Remand Scheduling Order. Accordingly, the parties respectfully propose the following revised schedule for the filing of Remand Briefs:

- Complainants' Remand Brief to be filed on or before September 27, 2019;
- Respondents' Remand Opposition Brief to be filed on or before October 28, 2019;
- Complainants' Remand Reply Brief to be filed on or before November 18, 2019.

Accordingly, and in light of the foregoing, complainants respectfully request that their motion be granted and that a Revised Remand Scheduling Order be issued with the proposed dates set forth above.

WHEREFORE, it is respectfully requested that Complainants' instant motion for a Revised Remand Scheduling Order be granted in its entirety, together with such other and further relief as the Presiding Officer may deem just and proper under the circumstances.

Dated: August 7, 2019
New York, New York

Respectfully Submitted,



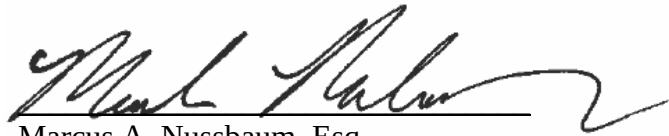
Marcus A. Nussbaum, Esq.
Mail Drop: P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR A REVISED REMAND SCHEDULING ORDER** upon Respondents' Counsel at the following address:

Garry Pogil, Esq.
112 West 34 Street, 18 Floor
New York, NY 10120

by first class mail, postage prepaid, and by email to: garry.pogil@gmail.com.

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', with a long, sweeping horizontal stroke extending to the right.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: New York, New York
August 7, 2019